

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

February 8, 2021

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. at the Cheyenne Civic Center and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. White moved to approve, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on January 25, 2021. Motion (per Consent Agenda) carried.

ORDINANCE –3rd READING – Annexing to the City of Cheyenne, Wyoming, land located east of and adjacent to South Greeley Highway between High Plains Road and Terry Ranch Road. Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4341)

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County A-1 Agricultural and Rural Residential to AG Agricultural and HI Heavy Industrial for land located east of and adjacent to South Greeley Highway between High Plains Road and Terry Ranch Road. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4342)

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from LI (Light Industrial) to MR (Medium-Density Residential) for property generally located northeast of the intersection of Pebrican Avenue and East 2nd Street. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Segrave. Comments were made in support of the zone change and proposed development. It was noted there have been multiple neighbor complaints concerning a neighboring property located at 609 Pebrican which is currently without sewer and water. Additional concerns were raised involving taking care of problem properties in neighborhoods so property values can be maintained. Mr. Segrave declared a conflict of interest due to a business relationship and did not participate in the discussion. Motion carried. Voting “yes” – all members of the governing body with the exception

of Mr. Segrave who didn't vote. (#4343)

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne, changing the zoning classification from MR (Medium-Density Residential) to CB (Community Business) for property generally located northeast of the intersection of Carbon Avenue and East 13th Street. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body. (#4344)

ORDINANCE –1st READING – Amending the Unified Development Code (UDC) Section 5.8.4, Fences – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Amending the Unified Development Code of the City of Cheyenne, Wyoming, to create the definition, ‘Family Unit’ and amend the definition of ‘Dwelling Unit’ – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Amending various sections of Chapter 12.04, Streets, Sidewalks, and Driveways Generally, of Title 12, Streets, Sidewalks and Public Places, of the Code of the City of Cheyenne, Wyoming – referred to Finance Committee. (Sponsor – Mr. Laybourn)

RESOLUTION – Authorizing the Mayor and City Clerk to sign a final plat for Bison Business Park, a plat of portions of Sections 28, 29, and 32, Township 13 North, Range 66 West of the 6th P.M., City of Cheyenne, Laramie County, Wyoming (located east of and adjacent to South Greeley Highway between High Plains Road and Terry Ranch Road) (Postponed from January 25, 2021). Betsey Hale, CEO of Cheyenne Leads, expressed appreciation to the City for their involvement and work on the resolution to allow for the development of the business park. Dr. Rinne moved to adopt, seconded by Mr. White. Dr. Rinne advised a motion to include Planning Commission Condition #1 was inadvertently left out at the Public Services Committee meeting, therefore, Dr. Rinne moved to amend by including the Planning Commission Condition #1, and revised final plat map dated February 2, 2021, seconded by Mr. Cook. It was confirmed by Dr. Rinne and Ms. Hale that the substitute map changes the name of Bison Road to Loving Trail due to another road being named Bison Road west of town. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#6122)

RESOLUTION – Authorizing the Cheyenne Police Department to apply for Office on Violence Against Women OVW-2021-37003 Improving Criminal Justice Responses to Domestic Violence, Dating Violence, Sexual Assault and Stalking Grant Program CFDA Number 16.590-Grants to Encourage Arrests Policies and Enforcement of Protection Orders Program. Captain Nate Buseck, Acting Police Chief, reported that they are requesting this item not be approved and explained the grant is awarded annually and due to issues involving management of the grant, staff is recommending they visit approval next year. He further advised the Police Department would like to work with the Sheriff's Department for future management of the grant. Captain Buseck noted managing the grant is almost a fulltime job in itself and the funding pays for overtime for officers responding to domestic violence calls. He feels the grant would be better managed by the

County who can include other entities involved. Reporting for Finance Committee, Mr. Roybal advised the item died due to lack of a motion, therefore there is no recommendation. Mayor Collins advised there has been positive communication relating to future partnerships for management of the grant. Upon inquiry, City Clerk Kris Jones and City Attorney Michael O'Donnell provided a point of clarification that due to the lack of a motion, the item can die or the governing body can make a motion and second and vote it down. Item died due to lack of motion.

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to sign a final plat for Cahill Park Addition, Filing No. 5, a replat of Lot 2, Block 1, Cahill Park Addition, Filing No. 4, Cheyenne, Laramie County, Wyoming (located south of and adjacent to Dell Range Boulevard between Windmill Road and Moran Avenue) – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Authorizing the sale of surplus city-owned property generally located at the northeast corner of Morrie Avenue and east Lincolnway, together with improvements thereon, and authorizing the Mayor to proceed with sale and transfer of the property – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Calling for an Americans with Disabilities Act Compliance evaluation and transition plan for the City of Cheyenne Municipal Building – referred to Finance Committee. (Sponsor – Mr. Laybourn)

[CA] RESOLUTION – Authorizing creation of a Community Technology Advisory Council and Directing the Mayor to appoint the same – referred to Public Services Committee. (Sponsor – Dr. Aldrich)

[CA] RESOLUTION – Authorizing creation of an Innovation and Entrepreneur Advisory Council and Directing the Mayor to appoint the same – referred to Public Services Committee. (Sponsor – Dr. Aldrich)

[CA] Professional Services Agreement between the City of Cheyenne and Little Joe Company, LLC, for the Janitorial Services for City of Cheyenne Facilities Project (General Fund, Fleet Maintenance Fund & Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$148,200.00). (#7281)

[CA] Professional Services Agreement between the City of Cheyenne and L and L, Inc. for the provision of golf services at the Airport Golf Clubhouse. Motion (per Consent Agenda) carried. (#7282)

[CA] Lease Agreement between the City of Cheyenne and L and L, Inc. for the use of the Kingham Prairie View Clubhouse and the provision of golf services at the Kingham Prairie View Golf Course. Motion (per Consent Agenda) carried. (#7283)

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County School District Number One (LCSD #1) to provide LCSD #1 use of city owned softball fields for practices and competitions. Motion (per Consent Agenda) carried. (#7284)

[CA] Professional Services Agreement between the City of Cheyenne and GLM Design Group for drainage engineering support (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$48,000.00). (#7285)

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization (MPO), and BenchMark Engineers, PC for the Walterscheid Boulevard Reconstruction Plan (MPO Federal Funds) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and LuckyDog Recreation, Ashton, ID, for the Pioneer Park Play System Project (Community Development Block Grant) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Star Playgrounds, Littleton, CO, for the South Lions Park Play System Project (Community Facility Fees Fund and Land and Water Conservation Grant) – referred to Finance Committee.

[CA] Grant Award Agreement with the State of WY Office of Homeland Security for a grant from the U.S. Department of Homeland Security (DHS), FEMA, Grant Programs Directorate, SHSP Grant Fiscal Year 2018 in the amount of \$3,418.28 for the Cheyenne Regional Response Team #7 (DHS Grand Code: EMW-2018-SS-00065) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7257 between the City of Cheyenne and Clean Air and Water Systems, LLC, for the Happy Jack Landfill Phase 2, Cells 1 and 2 and Cell 3 Excavation Earthworks project for additional labor to install liner in the leachate trench (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$7,402.50). (#7257)

[CA] Contract Modification #1 to Contract #7258 between the City of Cheyenne and Northwest Linings & Geotextile Products Inc., for the Happy Jack Landfill Phase 2, Cells 1 and 2 and Cell 3 Excavation Earthworks project for additional liner and shipping cost for the leachate trench (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$29,726.76). (#7258)

[CA] Contract Modification #2 to Contract #6798 between the City of Cheyenne and Trihydro Corporation to extend the Environmental Monitoring at the Happy Jack Landfill for an additional three years (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$230,707.00). (#6798)

[CA] Contract Modification #1 to Contract #7134 between the City of Cheyenne and AVI Professional Corporation for construction management services for the Capitol Basin 26th Street Storm Sewer Extension Design Project (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #S-1-21 for a Contract between the City of Cheyenne and Simon Contractors, for the 24th Street Mill and Overlay Project (2015-2018 and 2019-2022 1% Sales Tax) – referred to Finance Committee.

No comments were made on the Voucher Report as presented.

Appointments of Josh Chrysler and Amber Conwell to the Historic Preservation Board; and Richard Vallee to the Public Transit Advisory Board. Mr. White moved to approve, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointments).

Announcement was made that due to the President’s Day Holiday on Monday, February 15, 2021, regularly scheduled City Council Committee meetings will instead be held via electronic conference meetings as follows: Finance Committee will meet Tuesday, February 16, 2021 at Noon and Public Services Committee will meet Wednesday, February, 17, 2021 Noon.

Announcement was made of a Public Hearing to be held Monday, February 22, 2021, at 6:00 p.m. in the Cheyenne Civic Center, 510 W. 20th Street, Cheyenne, Wyoming, and via electronic conference meeting, for renewal applications for existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill licenses, microbrewery, satellite distillery, winery and special malt beverage permits) filed with the City Clerk’s Office. City Clerk Kris Jones announced that due to a scheduling conflict, the February 22, 2021 meeting of the governing body will be held electronically only (via Zoom). Mayor Collins explained the Cheyenne Symphony Orchestra previously reserved the facility on that date.

Under other business:

Mayor Collins expressed appreciation to Civic Center and other City staff for their work in making it possible to host City Council meetings at the Civic Center.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:22 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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